



CHAPTER 6.

An Act to secure that precautions shall be taken with a view to the protection of persons and property from injury or damage in the event of hostile attack from the air. A.D. 1937.

[22nd December 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Functions of Local Authorities.

1.—(1) It shall be the duty of the local authorities hereafter in this section respectively mentioned to submit to the Secretary of State schemes (hereinafter referred to as "air-raid precaution schemes") making provision as to the arrangements to be made in their several areas for the protection of persons and property from injury or damage in the event of hostile attack from the air, and as to the authorities and persons by whom such arrangements are to be carried out.

Duty of certain local authorities to prepare and submit air-raid precaution schemes.

(2) Air-raid precaution schemes as to the arrangements, other than fire precaution arrangements, to be made for minimising the injury and damage to persons and property likely to result from air raids, (hereinafter referred to as "air-raid general precautions schemes") shall be prepared and submitted to the Secretary of State by the councils of counties and county boroughs :

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Provided that—

- (a) any scheme to be so submitted by a county council shall be prepared after consultation with the councils of those county districts within the county that will be affected by the scheme, and it shall be the duty of every such council to assist the county council in the preparation of the scheme and, at the request of the county council, to furnish such information and submit suggestions on such matters as may be specified in the request; and
- (b) on the application of the council of any borough or urban district within a county, the Secretary of State may, after consultation with the county council, direct that a scheme for the borough or urban district shall, subject to any conditions which may be imposed by him, be prepared and submitted by the council of the borough or urban district instead of by the county council.
- (3) Air-raid precaution schemes as to the arrangements to be made for the extinction of fires likely to result from air-raids (hereinafter referred to as "air-raid fire precautions schemes") shall be prepared and submitted to the Secretary of State by the councils of boroughs (including county boroughs) and by the councils of urban districts; and the council of any rural district may, if they think fit, prepare and submit air-raid fire precautions schemes which may contain provisions conferring on the council such functions as to the extinguishing of fires and the protection of life and property in case of fire as may be necessary for giving effect to the schemes.

(4) Subject as hereinafter provided, air-raid precaution schemes shall, in particular, contain provisions as to such matters as may be prescribed by regulations made by the Secretary of State:

Provided that the Secretary of State may in the case of any council dispense with the preparation and submission of a scheme in respect of any matter specified in such regulations, and thereupon the council shall not be required to submit a scheme with respect to that matter.

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(5) Air-raid precaution schemes shall, as soon as practicable after the passing of this Act, be submitted by councils in respect of all the matters in respect of which they are required by the foregoing provisions of this section to submit schemes and for the whole of their areas, and any council by whom schemes are to be submitted may, and shall, if so required by the Secretary of State, prepare and submit separate schemes in respect of any of such matters, and, in the case of a county council, separate schemes in respect of different parts of their area.

(6) An air-raid general precautions scheme or an air-raid fire precautions scheme submitted by any council may, by arrangement with any other council who are required by this section to submit such a scheme, make provision for functions being exercised thereunder by the last-mentioned council as agents for the council submitting the scheme.

(7) An air-raid precaution scheme prepared and submitted by a county council may make provision as to what expenditure, if any, under the scheme is to be dealt with as expenditure for special county purposes.

2.—(1) The Secretary of State shall by order provide for allocating between the London County Council, the common council of the city of London, and the councils of metropolitan boroughs, the duty of preparing and submitting air-raid general precautions schemes under subsection (2) of the last foregoing section, and the order shall in particular determine which of the several matters prescribed by the regulations made under this Act are to be provided for in the schemes prepared and submitted by each of those councils respectively; and section one of this Act shall apply to the administrative county of London subject to such consequential modifications as may be specified in the order.

Application
of section
one to
London.

(2) Air-raid fire precautions schemes for the administrative county of London shall be prepared and submitted to the Secretary of State by the London County Council; and subsection (3) of the last foregoing section, except in so far as it defines air-raid precaution schemes, shall not apply to that county.

(3) Section ninety-seven of the Local Government Act, 1933 (which applies the provisions of Part III of

23 & 24
Geo. 5. c. 51.

A.D. 1937. — that Act relating to joint committees to the London County Council and to councils of metropolitan boroughs), shall, in relation to the functions imposed by this Act, have effect as if any reference in the said section ninety-seven to the council of a metropolitan borough included a reference to the common council of the city of London.

Approval,
effect and
amendment
of air-raid
precaution
schemes.

3.—(1) The Secretary of State may approve, with or without modifications, any air-raid precaution scheme submitted to him under this Act, and any such scheme shall, upon being so approved, come into force on such date as may be provided by the scheme as approved.

(2) It shall be the duty of every local authority to discharge such functions as may be imposed on the authority by this Act or by any scheme in force thereunder.

(3) Any air-raid precaution scheme in force under this Act may be amended by a subsequent scheme submitted and approved in like manner as the original scheme, and any council by whom such a scheme has been submitted shall, if required so to do by the Secretary of State, prepare and submit a scheme for the amendment thereof in accordance with any directions given by him.

Duty of
local autho-
rities to
co-operate
and power
to act
jointly.

4.—(1) It shall be the duty of all local authorities charged with functions under this Act or any scheme in force thereunder to assist each other where possible in making provision for the protection of persons and property from injury or damage in the event of hostile attack from the air, and any two or more such authorities may enter into mutual arrangements for that purpose, but, except with the approval of the Secretary of State, joint committees shall not be appointed for the purposes of this Act under section ninety-one of the Local Government Act, 1933, nor shall functions under this Act or any scheme in force thereunder be delegated under section two hundred and seventy-four of that Act, except with the like approval.

(2) The Secretary of State may after consultation with the councils concerned by order direct that the functions of any two or more councils in preparing and submitting air-raid precaution schemes with respect to any matters specified in the regulations made under this Act to which the order relates, or any functions under any air-raid precaution scheme for the time being

in force, being functions of councils having power to appoint joint committees under section ninety-one of the Local Government Act, 1933, shall, as respects any area specified in the order, be exercised by a joint committee so appointed. A.D. 1937.
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5. The council of any county or county borough, the common council of the city of London, and the council of any metropolitan borough or county district may purchase land compulsorily for any of the purposes of this Act by means of an order made by the council and confirmed by the Secretary of State, and the provisions of sections one hundred and sixty-one, one hundred and sixty-two, one hundred and seventy-four, and one hundred and seventy-five of the Local Government Act, 1933, and of paragraphs (a) and (c) of section one hundred and seventy-nine of that Act shall apply with respect to any such order as if for the references to the Minister of Health there were substituted references to the Secretary of State and for the references to a local authority there were substituted references to any such council as aforesaid. Compulsory purchase of land.

6. It shall be the duty of all local authorities charged with functions under this Act to furnish to the Secretary of State such information as may be demanded by him for the purpose of assisting the preparation by His Majesty's Government of plans for any necessary transference of the civil population in the event of hostile attack from the air. Duty of local authorities to assist arrangements for evacuation of civil population.

Financial Provisions.

7.—(1) Any local authority may incur expenditure for the purpose of making provision for the protection of persons and property from injury or damage in the event of hostile attack from the air whether or not such expenditure is incurred in pursuance of an air-raid precaution scheme. Expenditure by local authorities.

(2) All expenditure incurred since the ninth day of July nineteen hundred and thirty-five and before the passing of this Act by any local authority for the purpose aforesaid shall be deemed to have been lawfully incurred.

(3) For the purposes of defraying any expenditure of a metropolitan borough council under this Act, the

A.D. 1937. council may borrow money in accordance with and subject
 — to the provisions of the Metropolis Management Acts,
 62 & 63 Vict. 1855 to 1893, as amended by the London Government
 c. 14. Act, 1899 :

Provided that the Minister of Health shall, instead of the London County Council, be the authority for sanctioning the borrowing of any money under the powers conferred by this section, except where those powers are exercised with respect to land used or intended to be used partly for purposes for which money has been or may be borrowed with the consent of the London County Council under some other Act.

Exchequer
grants.

8.—(1) There shall be paid by the Secretary of State towards the approved expenditure incurred—

- (a) by the council of any county, county borough, or county district, grants calculated in accordance with the provisions of paragraph 1 of the Schedule to this Act;
- (b) by the common council of the city of London or the council of any metropolitan borough grants calculated in accordance with the provisions of paragraph 2 of the said Schedule.

(2) Grants payable under this section shall be paid at such times and in such manner and subject to such conditions as to accounts, certificates, and audit, as may be determined by the Secretary of State with the concurrence of the Treasury.

Expenses
payable out
of moneys
provided by
Parliament.

9. Any expenses incurred with the consent of the Treasury by the Secretary of State in the general superintendence and direction of measures taken under this Act, or in providing such services and training such persons and acquiring, on behalf of His Majesty, such equipment, appliances, and other material as the Secretary of State considers it necessary to furnish for the purpose of affording protection to persons and property from injury or damage in the event of hostile attack from the air, and in paying to local authorities the grants payable under this Act, shall be defrayed out of moneys provided by Parliament.

Investiga-
tion of
working of
financial
provisions.

10. The Secretary of State shall, before the expiration of a period of three years from the passing of this Act, in consultation with such associations of local authorities as appear to him to be concerned and with any local

authority with whom consultation appears to him to be desirable, cause an investigation to be made into the working of the financial provisions of this Act with particular reference to the expense falling to be borne by local rates, and shall cause a report of the result of the investigation to be laid before Parliament.

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Supplementary.

11.—(1) The Secretary of State may with the concurrence of the Treasury make regulations for the purposes of this Act and such regulations shall provide—

Regulations
and orders
by the
Secretary of
State.

- (a) for the storage of equipment, appliances, or material acquired by him under this Act;
- (b) as to loans, gifts, and sales of such equipment, appliances, or material;
- (c) for the matters as to which provision is to be made by air-raid general precautions schemes and air-raid fire precautions schemes respectively; and
- (d) as to the approval by the Secretary of State of expenditure of councils incurred for the purposes of air-raid precaution schemes, or incurred, with his concurrence, for the purpose of making provision otherwise than in pursuance of such a scheme for the protection of persons and property from injury or damage in the event of hostile attack from the air, and in particular as to the manner in which any such expenditure is to be estimated for the purposes of being so approved;

and such regulations may permit the approval of expenditure incurred at any time after the thirty-first day of December nineteen hundred and thirty-six.

(2) Any order made by the Secretary of State under this Act may be varied or revoked by a subsequent order made by him.

(3) All regulations and orders made by the Secretary of State under this Act shall be laid before Parliament as soon as may be after being made, and if either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulations or order as aforesaid have been laid before it resolves

A.D. 1937. — that the regulations or order shall be annulled, the regulations or order shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of new regulations or a new order.

Interpre-
tation.

12. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“ Approved expenditure ” means, in relation to any local authority, so much of the expenditure of the authority as is approved by the Secretary of State in accordance with regulations made under this Act ;

15 & 16
Geo. 5. c. 90.

“ Local authority ” includes any authority having power to levy a rate as defined for the purposes of the Rating and Valuation Act, 1925, or for whose expenses a precept may be issued for the levying of such a rate, and any combination or joint committee of any such authorities as aforesaid.

Application
to Scotland.

13.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland.

19 & 20
Geo. 5. c. 17.
19 & 20
Geo. 5. c. 25.

(2) For any reference to the Local Government Act, 1929, there shall be substituted a reference to the Local Government (Scotland) Act, 1929 ; for any reference to a “ county borough ” there shall be substituted a reference to a “ large burgh ” within the meaning of the Local Government (Scotland) Act, 1929 ; for any reference to a “ county district ” or to a “ borough or urban district ” there shall be substituted a reference to a “ small burgh ” within the meaning of the aforesaid Act, and for the purposes of this Act, other than those referred to in subsection (3) of section one, a small burgh shall be included within the county in which it is situated.

(3) For subsection (3) of section one of this Act the following subsection shall be substituted—

“ (3) Air-raid precaution schemes as to the arrangements to be made for the extinction of fires likely to result from air-raids (hereinafter referred to as ‘ air-raid fire precautions schemes ’) shall be prepared and submitted to the Secretary of State by county and town councils.”

(4) For subsection (7) of section one of this Act the following subsection shall be substituted— A.D. 1937.
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“(7) An air-raid general precautions scheme prepared and submitted by a county council may provide that any particular part of the expenditure under the scheme shall be charged on a part only of the county (including any small burgh therein). Any expenditure so charged shall, in so far as not met out of grants, be defrayed by a rate levied only in that part of the area on which it is so charged and, as regards any small burgh included in that part, section twenty-one of the Local Government (Scotland) Act, 1929, shall, with any necessary modifications, apply for the purpose of apportioning and allocating the expenditure so charged between such part of the landward area as is included in the part charged and the small burgh.”

(5) For references to appointment of joint committees of councils under section ninety-one of the Local Government Act, 1933, there shall be substituted references to combination of local authorities under section eleven of the Local Government (Scotland) Act, 1929, and to appointment of joint committees in pursuance of agreements under that section, and for any reference to section two hundred and seventy-four of the Local Government Act, 1933, there shall be substituted a reference to section thirteen of the Local Government (Scotland) Act, 1929.

(6) The expression “local authority” includes any local authority within the meaning of the Local Authorities Loans (Scotland) Act, 1891.

54 & 55 Vict.
c. 34.

(7) For any reference to a rate of one penny in the pound there shall be substituted a reference to a rate of four-fifths of one penny in the pound, and for any reference to an amount required by a county council or by a precepting authority to be paid by the council of a county district there shall be substituted a reference to an amount required by a county council to be paid by a town council under subsection (2) of section twenty-one of the Local Government (Scotland) Act, 1929.

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— (8) For sub-paragraph (b) of paragraph 3 of the Schedule to this Act, the following sub-paragraph shall be substituted—

“ (b) the produce of a rate of four-fifths of one penny in the pound for any year levied in any area shall be deemed to be that proportion of the produce of the consolidated rate which four-fifths of one penny bears to the total amount in the pound of the consolidated rate.

For the purpose of this paragraph the produce of the consolidated rate for any year shall be deemed to be the amount realised in that year by the collection of the consolidated rate levied for that or any previous year, and the total amount in the pound of the consolidated rate shall be deemed to be such sum as bears to a pound the same ratio as the aggregate of the sums assessed for by that rate bears to the mean of (i) the total of the rateable values of lands and heritages in the area on which the share of rates payable by owners is assessed and (ii) the total of such values on which the share of rates payable by occupiers is assessed.”

(9) A county or a town council may acquire land for the purposes of their powers and duties under this Act, and, where they are unable to acquire by agreement on terms which are in their opinion reasonable any land which is required for such purposes, they may purchase that land compulsorily by means of an order made by them and confirmed by the Secretary of State, and the following provisions of the Town and Country Planning (Scotland) Act, 1932, viz. : Part III of the First Schedule, Part I of the Third Schedule (except paragraph 2 and sub-paragraph (iii) of paragraph 3), and paragraph 4 (except head (b) of sub-paragraph (i)) of Part II of that Schedule, shall apply to any such order, subject to the following and any other necessary modifications:—

- (i) for references to the Department of Health for Scotland and to the responsible authority there shall be substituted, respectively, references to the Secretary of State and to the county or town council; and
- (ii) anything which has to be prescribed shall be prescribed by the Secretary of State :

Provided that—

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- (i) nothing in this subsection shall authorise the compulsory acquisition of any land which is the site of an ancient monument or other object of archæological interest, or which belongs to any local authority, or to any public undertakers within the meaning of the Housing (Scotland) Act, 1935; and

25 & 26
Geo. 5. c. 41.

- (ii) where any land proposed to be acquired by means of a compulsory purchase order under this subsection is situate within such distance as may be prescribed by the Secretary of State, after consultation with the Commissioners of Works, from any of the royal palaces or parks, the county or town council shall communicate with the Commissioners of Works and the Secretary of State shall, before confirming the order, take into consideration any recommendation received from the Commissioners of Works with reference to the order.

(10) A county or town council shall have power to borrow for any purpose of this Act to which capital is properly applicable, and the provisions of section twenty-three of the Local Government (Scotland) Act, 1929, shall apply to the power hereby conferred. Any sums borrowed in pursuance of this subsection shall be repaid within such period as the Secretary of State may fix.

(11) Any sums payable out of rates by a county or town council in respect of expenditure under this Act shall be paid out of such rate payable by owners and occupiers in equal proportions as the council may determine.

(12) The duties imposed by subsection (2) of section one of this Act on the councils of counties shall in the cases of the counties of—

(a) Perth and Kinross; and

(b) Moray and Nairn

be discharged by the joint county council, and any reference in this Act (except in subsection (3) of section one as applied by this section) to a county or the council thereof shall include a reference to a combined county and a joint council.

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Provisions
as to
Northern
Ireland.

14. For the removal of doubts it is hereby declared that it is and always has been within the functions of the Government of Northern Ireland to secure that in Northern Ireland precautions shall, as in other parts of the United Kingdom, be taken with a view to the protection of persons and property from injury or damage in the event of hostile attack from the air, and that the Parliament of Northern Ireland has power to make laws for such purposes.

Short title
and extent.

15.—(1) This Act may be cited as the Air-Raid Precautions Act, 1937.

(2) This Act, except the provisions thereof relating to the power of the Parliament of Northern Ireland to make laws, shall not extend to Northern Ireland.

SCHEDULE.

A.D. 1937.

Sections 8,
13.

CALCULATION OF EXCHEQUER GRANTS TOWARDS APPROVED EXPENDITURE.

Grants to Councils of Counties, County Boroughs and County Districts.

1. Subject as hereinafter provided, the grants to be paid to the council of a county or county borough of which the weighted population bears to the estimated population thereof the same proportion that any figure within the limits respectively specified in the first column of the following table bears to one, shall be of amounts equal to that percentage of the approved expenditure of the council which is correspondingly specified in the second column of that table :—

TABLE.

Figure of weighted population.	Percentage of approved expenditure.
Not exceeding 1·5 - - - - -	60
Exceeding 1·5 but not exceeding 2·5	65
Exceeding 2·5 but not exceeding 4·0	70
Exceeding 4·0 - - - - -	75

and the grants to be paid to the council of any county district shall be of an amount equal to the same percentage of the approved expenditure of the council as is payable under the foregoing provisions of this paragraph to the council of the county in which the county district is situated in respect of the approved expenditure of that council :

Provided that—

- (a) if the approved expenditure of the council of a county or county borough for any year is greater than the amount of the grant payable for that year to the council under the foregoing provisions of this paragraph by an amount which would cause the levying in their area or, in the case of a county council in any county district therein, of a sum in excess of the produce of a rate of one penny in the pound levied in their area or in that district, as the case may be, then

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the grant payable to the council of the county or county borough for that year in respect of so much of the approved expenditure as would cause the levying of a rate in excess of one penny in the pound in the area or district shall be of an amount equal to a percentage thereof, which, where the percentage payable in respect of the remainder of the council's approved expenditure does not exceed sixty-five per cent shall be seventy-five per cent, and where the percentage payable in respect of the remainder of the council's approved expenditure exceeds sixty-five per cent shall be eighty-five per cent; and

- (b) if the amount required by the county council to be paid by the council of any county district in respect of approved expenditure for any year would cause the levying in the district of a rate of more than one penny in the pound, then the grant payable to the council of the county district shall be of an amount equal to a percentage of the approved expenditure of that council which, where the percentage otherwise payable would not exceed sixty-five per cent shall be seventy-five per cent, and where the percentage otherwise payable would exceed sixty-five per cent shall be eighty-five per cent; and
- (c) where the grant payable for any year to the council of any county district is not increased under proviso (b) to this paragraph but nevertheless the approved expenditure of the council for that year is greater than the amount of the grant payable for that year to the council under the foregoing provisions of this paragraph by an amount which, together with any amount required by precepting authorities to be paid by the council in respect of approved expenditure for that year, is in excess of the produce of a rate of one penny in the pound levied in their district, then the grant payable in respect of so much of the approved expenditure as would cause the levying of a rate in excess of one penny in the pound shall be of an amount equal to a percentage thereof which, where the percentage payable in respect of the remainder of the council's approved expenditure does not exceed sixty-five per cent shall be seventy-five per cent, and where the percentage payable in respect of the remainder of the council's approved expenditure exceeds sixty-five per cent shall be eighty-five per cent.

*Grants to the Common Council of the City of London and
the Councils of Metropolitan Boroughs.*

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2. The grants to be paid to the common council of the city of London or to the council of any metropolitan borough of which the weighted population bears to the estimated population thereof the same proportion that any figure within the limits respectively specified in the first column of the following table bears to one, shall be of amounts equal to that percentage of the approved expenditure of the council which is correspondingly specified in the second column of that table :—

Figure of weighted population.	Percentage of approved expenditure.
Not exceeding 1·25 - - - -	60
Exceeding 1·25 but not exceeding 1·50	65
Exceeding 1·50 but not exceeding 1·75	70
Exceeding 1·75 - - - -	75

so, however, that provisos (b) and (c) to the last foregoing paragraph of this Schedule shall apply with respect to the common council of the city of London and to the council of any metropolitan borough as if those provisos were set out in this paragraph with the substitution of references to those councils for references to the councils of county districts.

3. For the purposes of this Schedule—

- (a) the expressions “weighted population” and “estimated population” mean respectively the weighted population and the estimated population as determined at the date of the commencement of this Act for the purpose of the apportionment of the General Exchequer Contribution under the Local Government Act, 1929; and
- (b) the produce of a rate of one penny in the pound for any year levied in any area shall be an amount ascertained in accordance with the following provisions :—
 - (i) the produce of a rate for any period shall be deemed to be the amount actually realised during that period by the collection of rates in that area;
 - (ii) the produce of a rate of one penny in the pound shall be deemed to be that proportion of the produce of a rate which one penny bears to the total amount in the pound of the rate;
 - (iii) where it is desired to ascertain the amount of the produce of a rate of one penny in the pound

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levied in any area comprising two or more parts which are differentially rated, the said amount shall be separately ascertained in respect of each of those parts in accordance with the foregoing sub-paragraphs, and the sum of the amounts so ascertained shall be the produce of a rate of one penny in the pound levied in the said area.

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